

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509083	POLETIS VS PATTERSON	MOTION TO STRIKE COMPLAINT ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF ANDREW POLETIS

Tentative Ruling: Defendants move to strike Plaintiffs' request for punitive damages. The court may, upon a motion made pursuant to CCP § 435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

Motions to strike can be used to attack the entire pleading, or any part thereof, i.e., even single words or phrases. (CCP § 435; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (CCP § 437(a).) "[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Superior Court* (1998) 62 Cal.App.4th 981, 984, fn. 2.)

In tort cases, a plaintiff may seek punitive damages for "oppression, fraud or malice" by the defendant. (Civ. Code § 3294(a).) As far as punitive damages, the complaint must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Punitive damages may not be pleaded generally. (*Id.*) It is not sufficient to allege merely that defendant "acted with oppression, fraud or malice." Rather, plaintiff must allege specific facts showing that defendant's conduct was oppressive, fraudulent or malicious (e.g., that defendant acted with the intent to inflict great bodily harm on plaintiff or to destroy plaintiff's property or reputation). (*Smith v. Sup.Ct. (Bucher)* (1992) 10 Cal.App.4th 1033, 1041-1042; *Anschutz Entertainment Group, Inc. v. Snepp* (2009) 171 Cal.App.4th 598, 643.)

"Malice" means conduct intended by the defendant to cause injury to the plaintiff or despicable conduct that is carried on by the defendant with a willful and conscious disregard for the rights or safety of others. (Civ. Code § 3294(c)(1).)

The complaint alleges the following regarding Patterson's conduct: "...Patterson stood up, quickly walked to the restaurant patio dining area rail and hopped over it onto the sidewalk, rapidly approached Plaintiffs up to the raised ledge of the planter box where [Andrew] was standing, and put his arms around Andrew's shoulders. Patterson then pulled [Andrew] down onto the side walk, where Andrew tried to stand, and then Patterson threw Andrew down flat on his right side on the sidewalk. Patterson then struck [Andrew's] face with a closed fist, breaking his nose. [Andrew] tried to prevent further attack, and tried to stand up, but was thrown down again by [Patterson]." (Complaint, ¶ 1, p. 2:13-20.)

As alleged, Patterson's actions show intent to cause injury with a willful and conscious disregard for the safety of Plaintiffs. The allegations are similar to those seen in *Thomas v. Doorley* (1959) 175 Cal.App.2d 545, where the court upheld a jury award of punitive damages in favor of the plaintiff who stated he was the victim of an "unprovoked, unwarranted and malicious assault." (*Thomas, supra*, 175 Cal.App.2d at 548.) Despite conflicting testimony regarding self-defense, the court held that, "It is beyond controversy that the defendants were guilty of oppression and malice and that the court was justified in awarding punitive damages as provided by section 3294 of the Civil Code." (*Id.* at 494.)

Even when a complaint does not have a specific request for punitive damages, it has been found that allegations that a defendant assaulted and beat a plaintiff, and the defendant struck the plaintiff in and about the face fracturing plaintiff's jaw and causing injury to the plaintiff's left eye, and numerous contusions and abrasions about the plaintiff's face and head, inferentially pleaded malice so as to warrant an instruction on exemplary damage. (See generally, *Voy v. Shelley* (1960) 177 Cal.App.2d 132.)

Here, the complaint sufficiently describes Patterson's assault and battery on Andrew such that a request for punitive damages survives the pleadings challenge. (Complaint, ¶ 1, p. 2:13-20.)

Motion to Strike Plaintiffs' Claim for Punitive Damages DENIED.

Case Management Conference confirmed for 7.31.26

5.

CASE #	CASE NAME	HEARING NAME
CVPS2602614	GONZALEZ VS LALEZARY LAW FIRM, LLP	MOTION TO VACATE; TO DISQUALIFY; VOID; AND FOR TERMINATING SANCTIONS by JENNIE LYNN GONZALEZ

Tentative Ruling: No tentative ruling. Case was transferred to Los Angeles County Superior Court for all purposes.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2602951	NGHIEM VS GENESIS MOTOR AMERICA, LLC	MOTION TO COMPEL ARBITRATION BY GENESIS MOTOR AMERICA, LLC

Tentative Ruling: CCP §1281.2, governing orders to arbitrate controversies, provides:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner;